



FARM ANIMAL TRACKING SERVICE AGREEMENT

This Agreement is made on [Date]: _____ between [Company Name]: _____ and [Customer Name and Surname]: _____.

1. Service Overview

- The Service Provider offers a tracking service that enables the Customer to monitor the location of their farm animals. However, the Service Provider is *not* responsible for the recovery of lost animals; this remains the sole responsibility of the Customer. The Customer acknowledges that the tracking service does not guarantee the prevention or recovery of lost animals.
- We hereby assure you that your personal information, including your phone number, will be securely protected and processed in compliance with the South African Protection of Personal Information Act (POPIA). The phone number will be used solely for contacting you and activating the tracking device, thereby enabling communication between the device and your smartphone.

2. Payment Terms

- The Customer agrees to pay for the continued use of the service, as wireless transmission incurs costs.
- Payments must be received on time. **If payment is overdue by 10 days, a 5% interest charge will be applied** (subject to applicable statutory limits under the National Credit Act).
- If payment remains outstanding beyond 10 days after the payment due date, the tracking device will be deactivated until full payment is received. Prior to deactivation, the Service Provider will issue formal notice, allowing an opportunity for the Customer to remediate the outstanding balance.

3. Device Usage and Responsibility

- The tracking device must not be removed, disassembled, or tampered with. Any attempt to alter the device will relieve the Service Provider of any responsibility for device malfunction resulting from such tampering.
- The Customer is solely responsible for monitoring their farm animals using the provided system. The Service Provider will offer technical support only for issues directly related to the tracking system.
- The Customer must ensure that they have sufficient mobile data and airtime to operate the tracker effectively. The Customer's phone number and the location of the farm are required for activation of the tracking devices to ensure that the devices communicate exclusively with the Customer or the authorized possessor.

4. Security Guidelines

- The Customer is advised not to disclose any tracking device details to minimize the risk of theft or unauthorized access.
- The Customer must have a smartphone that is compatible with the tracking system.
- The Customer agrees to continuously monitor all farm animals equipped with tracking devices and to verify their status upon each instance of Exiting the designated geofencing area.

5. Device Replacement and Technical Issues

- The Service Provider will replace tracking devices in cases of software malfunctions, communication failures, or server issues.
- If the Service Provider intends to implement a software update, the Customer will be notified in advance, and any temporary interruptions in service will not be considered a breach of this Agreement.
- The Service Provider is not responsible for reporting lost animals to the authorities or for retrieving them.

6. Installation and Health Considerations

- The Service Provider is responsible for installing the tracker; however, the Service Provider does not handle or restrain farm animals during installation.
- The Customer acknowledges that the installation process may carry risks, such as minor injuries or infections (e.g., ear infections). The Customer accepts responsibility for monitoring the health of their animals.
- The tracking device shall be activated only upon confirmed receipt of payment.

7. Cancellation and Outstanding Payments

- If the Customer fails to remit payments over an extended period without having formally canceled the service, all accrued outstanding debt must be settled in full prior to the discontinuation of the tracking service.
- Should the Customer neglect to pay the outstanding debt at the time of cancellation, such failure may subject the Customer to the initiation of legal proceedings. Disputes regarding outstanding payments shall be addressed through mediation or arbitration in accordance with South African law prior to any litigation.
- If you intend to sell or transfer ownership of the animal while the tracking or monitoring device is still attached, you are required to notify the service provider in advance. This ensures proper deactivation and removal of the device before the transaction is finalized.

8. Acknowledgment and Agreement

By signing below, the Customer acknowledges that they have read, understood, and agreed to the terms outlined in this Agreement.

Customer's Signature: _____

Customer's Phone Number: _____

Customer's ID Number: _____